



Bylaw Amendment Proposal (vedtektsendringsforslag) Eclipse NMBU

Plain-language explanation of the changes: ECL-H2026-CASE-07B

ECLIPSE

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Companion to: the full proposed New Bylaws text, ECL-H2026-CASE-07A, and the voting procedure, ECL-H2026-CASE-07C. This document has no independent legal effect: if it conflicts with ECL-H2026-CASE-07A, the full text controls.

Why a restructuring, not a patch

The Old Bylaws (13 sections) have not kept pace with Eclipse NMBU's growth: the C-suite, membership system, project process and delegation of authority have all grown informally beyond what the Old Bylaws describe. Rather than patch individual sections, the Board proposes a full restructuring into 18 sections across five parts, so that the written Bylaws match how the Association actually operates.

What changes

1. C-suite structure. The Board goes from CEO/CTO/CFO/CMO to CEO/CTO/CBO/CPO.

- CFO (finance) and CMO (marketing/external communication) are merged into a single **CBO: Chief Business Officer**, who holds full, undelegated authority over the Association's economy.
- A new **CPO: Chief People Officer** takes over membership administration, recruitment and internal culture: work that previously had no dedicated owner.
- The **CTO** becomes the Association's formal **Deputy Chair (nestleder)**, automatically stepping into the CEO's responsibilities when the CEO is unavailable. This did not exist under the Old Bylaws.

2. Six membership tiers, not four. **Mentor** and **Alumni** are added as formal tiers alongside Board Member, Core Member, Active Member and Inactive Member. Alumni status is now automatic when a Membership Contract lapses without renewal, rather than undefined.

3. Election and Control Committee. A new three-member committee, elected each autumn, takes over running elections and advance nominations, and monitors Bylaw compliance: work currently done informally by the Board itself. **This committee does not exist yet**; it will only exist after these New Bylaws are adopted and the committee is elected at a future Supplementary General Assembly. This General Assembly's own election therefore still uses the Old Bylaws' election mechanics (see the Transitional C-suite Case, ECL-H2026-CASE-08).

4. Two General Assemblies a year, with different jobs. The New Bylaws formally distinguish a spring **Elective General Assembly** (full Board elections) from an autumn **Supplementary General Assembly** (fills vacancies, elects the Election and Control Committee). The Old Bylaws did not distinguish these: every General Assembly did full elections. *This General Assembly is being held under the Old Bylaws, so this distinction does not change how today's election works; it only governs future General Assemblies once the New Bylaws are in force.*

5. Delegation and signature, formalised. Under the Old Bylaws, the whole Board jointly held Signature Right. Under the New Bylaws, the **CEO alone** holds Signature Right and the Association's overall Mandate, but is **required** to delegate authority to the other Board members in their areas (subject to General Assembly approval), and may delegate Signature Right to them directly. The key idea, carried through this whole document set, is that **signing on the Association's**

behalf is itself a responsibility, not just an administrative permission: see the Responsibility & Signature Contract, ECL-H2026-RESP-01A/01B.

6. Project gates. Starting a project now formally requires an MCR (Mission Concept Review) and an SRR (System Requirements Review) before the Board approves it, following a modified NASA Project Life Cycle. *The detailed phase model: and any further gates such as PDR/CDR: is left to a separate governance document that has not yet been written; the Bylaws only fix MCR and SRR as mandatory today.*

7. English as operating language. Eclipse NMBU's operating language becomes English; Norwegian-language documents must be translated to English (and vice versa, on request).

8. Privacy. Members gain an explicit, written right to request deletion of their personal data at any time, with the Association obliged to tell members about this right when they join and when they leave.

What does not change

The Association's name, purpose, independence, self-owning legal status, core ethics/environment principles, whistleblowing process (now clarified to route through the CPO), and the prohibition on proxy voting all carry over unchanged in substance.

What this vote actually decides

Adopting the New Bylaws is a single constitutional decision requiring 2/3 of *all* Eclipse NMBU members (not just those present) to vote in favour: see ECL-H2026-CASE-07C for exactly how that vote is structured alongside any submitted Amendments to this text.